

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

NOTICE OF OPPOSITION

VEXATIOUS LITIGANT MOTION

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the motion opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court's authority to consider the substance is under Code of Civil Procedure sections 391
2 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

3 5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure
4 section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

5 Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

6 **I. PURPOSE**

7 Plaintiff Franciscus Dylan Rosario respectfully gives notice that he opposes Defendant CSAA
8 Insurance Exchange's Motion to Declare Plaintiff a Vexatious Litigant and to Require Security,
9 served July 21, 2026, and noticed for hearing on August 26, 2026, at 9:00 a.m. in Department 302
10 of this Court.

11 Plaintiff asks this Court to deny the motion in full, deny security under Code of Civil Procedure
12 section 391.3, decline Defendant's proposed statewide blank-bond and pre-service screening order,
13 and enter Plaintiff's [Proposed] Order Denying Motion lodged concurrently.

14 **II. WHAT THIS NOTICE DOES NOT ASK**

15 This Notice does not ask the Court to re-try the personal-injury verdict in CGC-21-594102, to
16 decide appellate issues pending in A173827 on the merits, or to adjudicate Defendant's pending
17 anti-SLAPP fee motion. Memorandum of Costs issues under Defendant's MC-010 dated July
18 21, 2026, are the subject of Plaintiff's separately noticed Motion to Tax or Strike Costs under
19 California Rules of Court, rule 3.1700(b), on a specially set calendar, and are not noticed for the
20 August 26, 2026 line except as Plaintiff objects to any use of costs as proof of vexatiousness.

21 By this filing, Plaintiff places before this Department the express statutory and rules authority for
22 each accompanying paper. Plaintiff's authority to file each paper, and the Clerk's authority to
23 accept it, are set forth in each paper's Authority to File section and rest on Code of Civil Proce-
24 dure sections 1005, 1010, 1010.6, 1014, and 2015.5; California Rules of Court, rules 1.21, 2.100
25 through 2.111, 2.118, 2.119, 2.256, 2.257, 3.1110, 3.1113, and 3.1300; and Government Code
26 sections 68150 and 69845.

III. GROUNDS IN SUMMARY

As set forth in the accompanying Memorandum of Points and Authorities, Defendant's motion fails because:

1. Section 391(b)(2) does not apply (wrong primary right, wrong defendant, incomplete finality).
2. Section 391(b)(3) is not met under *Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971-972 (docket volume and email counts are not flagrant abuse).
3. Section 391.3 security requires both a vexatious finding and no reasonable probability of prevailing; neither predicate is met as to unadjudicated institutional-omission rights after the July 1, 2026 order.
4. Defendant's proposed order seeks unauthorized statewide blank-bond and pre-service screening relief that bypasses Code of Civil Procedure section 391.7.
5. Themes [1] through [5] in the Opposition Memorandum show unauthorized anti-SLAPP immunity / section 425.17(c) gateway issues, Fair Claims record conflicts, deny-delay-defend versus open-court access, manufactured limits on leave, and self-created docket volume from Defendant's three-motion stack against Plaintiff's leave / SAC path.
6. Compliance with the trial court's evidence-of-law framing (Wong RT 11, pp. 7-8: statutes "not part of the evidence" / "period") is not vexatiousness; lodging statutes and controlling authority for a complete record is not Code of Civil Procedure section 391(b)(3) flagrant abuse under *Morton*. (Opp. MPA Argument VII; Plaintiff's Exhibit D.)

IV. ACCOMPANYING PAPERS

Filed and served with this Notice for the August 26, 2026 hearing are:

1. Plaintiff's Memorandum of Points and Authorities in Opposition (filing item 02).
2. Declaration of Franciscus Dylan Rosario in Support of Opposition (filing item 03).
3. Plaintiff's Objections and Response to Defendant's Request for Judicial Notice (filing item 04).
4. Plaintiff's Objections to Defendant's [Proposed] Order (filing item 05).

5. [Proposed] Order Denying Defendant's Motion (filing item 06).
6. Plaintiff's Evidentiary Objections to Declaration of Tyler J. O'Connell (filing item 07).
7. Plaintiff's Exhibit Index in Support of Opposition (Exhibits A through D) (filing item 08).
8. Proof of Service (POS-050) for this opposition cohort.
9. Declaration of Compliance with California Rules of Court, rules 2.256 and 3.1110.

Separately noticed on the CRC 3.1700(b) cost calendar (not conflated with August 26 unless the Court consolidates):

10. Plaintiff's Notice of Motion and Motion to Tax or Strike Costs (filing item 09).
11. Plaintiff's Response and Objections to Defendant's Memorandum of Costs (MC-010) (filing item 10).

V. RELIEF REQUESTED

Plaintiff respectfully requests that the Court, at the August 26, 2026 hearing:

- A. Deny Defendant's motion to declare Plaintiff a vexatious litigant under Code of Civil Procedure section 391(b)(2) and (b)(3);
- B. Deny Defendant's request for security under section 391.3;
- C. Deny Defendant's proposed order in full, including blank statewide bond and universal pre-service screening terms;
- D. Enter Plaintiff's [Proposed] Order Denying Motion;
- E. Decline to treat Defendant's MC-010 as evidence of vexatiousness; and
- F. Grant such other and further relief as the Court deems just and proper.

Dated: July 22, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

7624 Melody

Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona